



COUNTY OF SONOMA

575 ADMINISTRATION
DRIVE, ROOM 102A
SANTA ROSA, CA 95403

SUMMARY REPORT

Agenda Date: 10/8/2019

To: Sonoma County Board of Supervisors
Department or Agency Name(s): Sonoma County Regional Parks
Staff Name and Phone Number: Bert Whitaker, (707) 565-3064
Vote Requirement: Majority
Supervisory District(s): First and Second

Title:

Interim Co-Management Agreement with Federated Indians of Graton Rancheria (FIGR) for Tolay Lake Regional Park

Recommended Action:

Authorize the Director of Regional Parks to enter into an Interim Co-Management Agreement for Tolay Lake Regional Park in partnership with the Federated Indians of the Graton Rancheria.

Executive Summary:

The purpose of this Interim Co-Management Agreement by and between the County of Sonoma by and through the Sonoma County Regional Parks Department (Regional Parks) and the Federated Indians of the Graton Rancheria (FIGR) for Tolay Lake Regional Park (Tolay) is to develop a long term co-management agreement while working collaboratively to develop and implement a Historic Property Treatment Plan and a Memorandum of Agreement consistent with Section 106 of the National Historic Preservation Act. Additionally, Regional Parks and the Tribe desire to further enhance our partnership protecting and preserving historic, tribal cultural and natural resources at Tolay with a mutual commitment to designate staff and resources for site stewardship, education and interpretation.

Discussion:

Tolay Lake Regional Park (Tolay) is approximately 3,434 acres in size, located about 5 miles southeast of the City of Petaluma and was opened to the public in October 2018. The Park Master Plan approved by the Board of Supervisors on October 9, 2018 represents a collaborative effort between Regional Parks and the FIGR to guide the development of park improvements, provide public access, ensure cultural resource protection, offer culturally relevant interpretive programs, and restore and enhance the park's diverse natural resources.

Regional Parks and the FIGR have been working together since 2005 to develop protocols and procedures to protect cultural and tribal resources and to promote awareness of the unique Native American tribal history associated with Tolay Lake. In 2010 both parties entered into a Memorandum of Understanding to formalize the interim protocols regarding communications and procedures for tribal monitoring and treatment of cultural resources within the park. In 2011 the Tribe and Regional Parks established a "cooperating agency" relationship for participation in the development of the park master plan, and that agreement was extended through October 9, 2019.

As part of developing this Interim Co-Management Agreement, Regional Parks and FIGR have successfully

partnered and leveraged resources over the past year. The formal park dedication occurred on March 30, 2019, and with over 700 attending, it was an impactful engagement with the community to celebrate this major milestone. FIGR and Regional Parks have collaborated on 4 grant applications this past year with a recent notice from the State Natural Resources Agency recommending funding for the Tolay Lake Gathering Area. FIGR has also applied for a grant through the Administration of Native Americans to assist with facilitated trainings for Regional Parks and FIGR staff developing a co-management agreement, and a Tribal Land Stewards program to support traditional ecological knowledge with environmental compliance among participating tribal citizens. Regional Parks and FIGR have been co-hosting regular discussions, onsite tours and training sessions on the daily operations and maintenance activities at Tolay, funding opportunities, park programs and interpretation, and the development of this proposed Interim Co-Management Agreement.

The purpose of the Interim Co-Management Agreement is to provide the necessary time to develop a long range Co-Management Agreement between Regional Parks and FIGR, while also maintaining the existing protocols regarding communication, procedures for tribal monitoring and treatment of cultural resources within Tolay. This will include the development and implementation of a Historic Property Treatment Plan and a Memorandum of Agreement required under Section 106 of the National Historic Preservation Act, which will supersede the 2010 Memoranda of Understanding. Additionally, this agreement supports enhanced environmental and cultural protection, site stewardship, education and interpretation to protect and preserve historic sites, tribal cultural resources, sacred sites and natural resources at Tolay. The future Co-Management agreement is expected to require 36 months to develop and the results from this unique government-to-government partnership could serve as a regional, state and national model.

Prior Board Actions:

October 8, 2018, Board approved Tolay Lake Regional Parks Master Plan and Environmental Impact Report and extended the Memorandum of Agreement for the Tolay Lake Regional Park Master Plan and Environmental Review Process through October 9, 2019.

August 9, 2011, Board approved Memorandum of Agreement for the Tolay Lake Regional Park Master Plan and Environmental Review Process.

October 26, 2010, Board approved Memorandum of Understanding for the Tolay Lake Regional Park Interim Plan.

FISCAL SUMMARY

Expenditures	FY 19-20 Adopted	FY20-21 Projected	FY 21-22 Projected
Budgeted Expenses			
Additional Appropriation Requested	\$10,000		
Total Expenditures	\$10,000		
Funding Sources			
General Fund/WA GF			
State/Federal			
Fees/Other	\$10,000		
Use of Fund Balance			
Contingencies			

Agenda Date: 10/8/2019

Total Sources	\$10,000		
----------------------	-----------------	--	--

Narrative Explanation of Fiscal Impacts:

Staff time in support of this agreement has been included in the department's baseline and no additional appropriations are needed. Regional Parks does plan to bring on a consultant to develop a Historic Properties Treatment Plan that will provide strategies to protect sensitive known and found cultural and historic resources. The estimated contract cost of \$10,000 will be funded by Measure M tax revenues, and appropriations will be included in the First Quarter Consolidated Budget Adjustments.

Staffing Impacts:			
Position Title (Payroll Classification)	Monthly Salary Range (A-I Step)	Additions (Number)	Deletions (Number)

Narrative Explanation of Staffing Impacts (If Required):

None.

Attachments:

Agreement

Related Items "On File" with the Clerk of the Board:

None.